

Regulation (EU) 2022/2065

Digital Services Act

Transparency Report for Marktplaats

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Introduction

Marktplaats publishes this Transparency Report in accordance with the requirements under art. 15 and 24 of the Digital Services Act (DSA—Regulation (EU) 2022/2065), and as part of its efforts to strengthen a transparent and safe environment for its users.

The information presented in this Transparency Report covers the period from February 17, 2024, to December 31, 2024.

Marktplaats is dedicated to maintaining a safe and secure online marketplace. Our Terms and Conditions and content policies clearly outline acceptable behavior and explicitly prohibit any illegal or harmful activities. These policies undergo periodic reviews and updates to adapt to evolving regulations, emerging risks, and community feedback.

Through our Notice and Action mechanism, users can flag allegedly illegal content, content against our Terms and Conditions, or report suspicious users. This includes the ability to appeal moderation decisions that they do not agree with.

By providing them with clear guidelines and reporting channels, we encourage users to take an active role in maintaining a respectful and lawful environment in our platform.

1. Orders from authorities

Marktplaats has longstanding and well-established cooperation channels with many authorities and bodies in the Netherlands, which ensures transparent communication, and action when needed. These relationships have enabled us to develop an efficient process for handling requests from and proactively reaching out to authorities, with direct channels of communication that facilitate timely and appropriate responses.

Marktplaats may receive orders from Member State authorities pursuant to Articles 9 and 10 of the DSA (hereinafter: “orders from authorities”). Article 9 DSA covers orders to act against illegal content issued by national judicial or administrative authorities under applicable Union or national laws. Article 10 DSA refers to orders requesting specific information about individual users of our services, also issued by relevant authorities under applicable laws.

Authorities can submit orders through our designated points of contact. Upon receipt, we review and assess the legal basis of such orders. The receipt of an order does not, in itself, confirm the presence of illegal content or a violation of applicable laws. Each order is assessed in accordance with our legal obligations and internal policies before any action is taken.

When an order pertains to illegal content, we evaluate whether the content qualifies as illegal under applicable laws and whether removal is required. If the assessment confirms its illegality, we promptly remove it from our platform.

In cases where an order requests user information as part of an official investigation, we comply with the request if it aligns with applicable legal and privacy requirements.

The table below summarizes the orders from authorities received within the reporting period, broken down by category of illegal content (where applicable):

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Summary of information about orders from authorities			
Scope (Member State)	The Netherlands		
Category of illegal content	Number of orders to act	Number of specific items included in the total number of orders to act	Number of orders to provide information
Unsafe or non-compliant products	1	12.457	0
General	0	0	1.441
TOTAL	1	12.457	1.441

We inform the authority of the receipt of the order to act against illegal content within 24 hours.

It takes a median time of 48 hours to remove existing illegal content, from the time an order to act is received.

If the order includes the request to also remove identical content, or to prevent the publication of identical content, we use a keyword-based flagging system (see chapter 4 for additional information). The median time to set up the flagging system is 72 hours from the receipt of the order to act.

The median time to confirm receipt of, and give effect to, an order to provide information is 24 hours, unless a shorter response time is specified in the order.

Orders to provide information must always specify the statutory regulation under which we are required to cooperate and provide the requested data. However, they do not always indicate a specific category of illegal content. As a result, in this report we do not categorize the orders received based on the type of illegal content.

2. Notices

In accordance with Article 16 of the Digital Services Act (DSA), Marktplaats has Notice and Action mechanisms in place (hereinafter: “tips”), that allow users, entities¹ and Trusted Flaggers to report illegal content, or content in violation with our Terms and Conditions.

As of 31 December 2024, no organization was officially granted the status of Trusted Flagger by the ACM (Autoriteit Consument & Markt) and therefore the number of notices submitted by Trusted Flaggers in this reporting period is 0.

By taking an active role in reporting suspicious content and users, our community is actively contributing to keeping our platform respectful and lawful. It is possible to report directly through the dedicated button from the listing page (‘Meld aan Marktplaats’).

Content moderation is largely manual, but also relies on some degree of automation. For further information, see chapter 4. Upon receipt of a tip, we review with a combination of manual and automated means the report and assess its illegality or whether it violates our Terms and Conditions.

If we determine that the content is illegal or violates our Terms and Conditions, we remove it from our platform as quickly as possible. If the content does not breach our policies or is not considered illegal, it remains fully accessible to users. Our content moderation approach does not include partial restrictions, such as visibility restrictions or demotions: content is either removed or remains available. Some content may be removed for reasons different from those initially reported.

The table below provides an overview of:

1. The total number of notices received from users and entities

¹ Authorities and official representatives authorized to submit complaints or report illegal activities, such as copyright infringement, that are not considered Trusted Flaggers

2. The type of alleged illegal content reported
3. The action taken in response (i.e. content removal or account suspension)

Summary of information about Notice & Action mechanisms			
Category of illegal content / incompatible with the terms and conditions	Number of notices received	Number of items included in the notices	Action taken
Consumer Information	53.582	53.582	36.536
Brand Comparison	53.582	53.582	36.536
Cyber Violence and Suspicious Behavior	22.651	22.651	See table in chapter 4
Harassment	22.651	22.651	See table in chapter 4
Intellectual Property Infringements	12.014	31.707	31.707
Trademark owner doesn't make this type of product	126	126	126
Item is a counterfeit product which infringes the trademark owners' rights	3.637	3.637	3.637
Item is an unlawful importation of product bearing trademark	7	7	7
Listing contains unlawful comparison to trademark owner's brand name	158	158	158
Listing contains unlawful use of trademark	1.036	1.036	1.036
Item is an unlawful copy of media (software, games, movies, etc.)	1	1	1

Summary of information about Notice & Action mechanisms			
Illegal copy of a print work	3	3	3
Item is an unlawful copy of other copyrighted work	33	33	33
Listing uses unlawful copy of copyrighted text	19	19	19
Listing uses unlawful copy of copyrighted image	118	118	118
Listing uses unlawful copy of copyrighted image and text	10	10	10
Patent infringement	75	75	75
Item infringes a registered design (requires registration of design)	173	173	173
Other (multiple reasons from the list above)	6.618	19.693	19.693
Scams And Fraud	498.149	498.149	48.677
Scam	169.124	169.124	<i>See table in chapter 4</i>
Suspicious User	206.409	206.409	41.039
Already Sold	15.714	15.714	7.638
Other	106.902	106.902	<i>See table in chapter 4</i>
Unsafe And Prohibited Products	210.606	210.606	73.131
Suspicious Product	206.409	206.409	72.983
Unsafe Product	4.197	4.197	148

Summary of information about Notice & Action mechanisms			
Other Violation T&C	443.382	443.382	78.890
Erotic	24.725	24.725	16.035
Rules Violation	206.409	206.409	41.813
Rude Behavior	67.194	67.194	See table in chapter 4
Non Responder	41.542	41.542	See table in chapter 4
Spam	1.369	1.369	See table in chapter 4
Contains URL	9.897	9.897	5.687
Duplicate Ad	27.441	27.441	632
Wrong Category	64.805	64.805	14.723
TOTAL	1.240.384	1.260.077	268.941*

* For some categories that pertain to user behavior, we lack the technical capability to differentiate between users who were suspended after receiving a tip, and those who were suspended as a result of our own initiatives or other warnings. This limitation means that the data in the table above is incomplete. To obtain a comprehensive overview of data related to user suspension, please refer to the table provided in chapter 4.

The median time required to address tips on suspicious content is below the 1-hour SLA, at 50 minutes.

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The median time required to act on tips on suspicious users is 5 hours, compared to an SLA of 8 hours.

3. Internal complaint-handling systems

This section includes information about the complaints Marktplaats received through its internal complaint-handling systems, set up in accordance with Article 15(1)(d) DSA).

When Marktplaats receives a report of potentially illegal content, either from a user, Trusted Flagger, or another entity, we assess whether the content is illegal or violates our Terms and Conditions. This evaluation may result in the removal of the content or no action being taken.

Following the assessment, Marktplaats informs the reporting party of the decision made and the legal basis or Terms and Conditions that informed the decision. If the content is removed, the owner of the content is also notified of the decision and the reasoning behind it.

If either the reporting party or the content owner disagrees with Marktplaats' decision, they have the option to challenge it through Marktplaats' internal complaint-handling system. This triggers a secondary review of the complaint. After this review, the involved parties are informed whether the original decision has been upheld or reversed.

If a consumer remains unsatisfied with the handling of their complaint after going through the internal complaint-handling system, they have the option to escalate the matter to an external dispute resolution body, by filing a complaint with the Geschillencommissie Thuiswinkel or via the European ODR Platform.

Marktplaats is committed to integrating out-of-court dispute settlement bodies, as they receive certification under Article 21 DSA through the Digital Services Coordinator, into its dispute resolution processes. During the reporting period covered by this document, Marktplaats did not receive any complaints through one of the appointed certified out-of-court dispute settlement bodies.

The table below summarizes the number of complaints submitted to the internal-complaints mechanism received per category of illegal content / Terms and Conditions violation, and whether the decision was reversed or upheld as a consequence of the second review.

Summary of information about complaint-handling systems			
	Number of Complaints	Decisions Reversed*	Decisions Upheld*
Complaint on the decision taken on a tip submitted via Notice and Action	9.279	3.305	11.840
Complaint regarding a decision to suspend or terminate an account	5.861		
Number of suspensions enacted for the provision of manifestly illegal content, unfounded notices or complaints (repeat offenders)	938**	938	0

* Due to technical limitations, we cannot reinstate content after it has been removed. We therefore instruct the user to place a new listing, if the decision is reversed after they challenged our decision of removing it. Consequently, it is not possible to provide an accurate count of ads that are placed back online after a decision reversal. Therefore, the figures presented in columns 2 and 3 of the table above solely pertain to decisions that were either upheld or reversed after a decision not to take action on a tip.

** Due to technical constraints, we cannot report a separate number for users suspended after providing illegal content or submitting unfounded notices or complaints. This figure includes users suspended on both our Dutch platform (Marktplaats) and our Belgian platform (2dehands/2ememain).

The median time required to address complaints submitted to the internal-complaints mechanism on suspicious content is below the 1-hour SLA, at 50 minutes.

1. Own initiative moderation and automated means

Use of manual review in combination with automated systems

Marktplaats uses a combination of automated and manual review processes to identify and remove content that is illegal or violates our Terms and Conditions, or suspicious user behavior.

Manual review involves human moderators (hereinafter: “agents”), who assess content for potential violation. Our dedicated moderation teams review these flagged items in a timely manner, ensuring that we address reported content consistently and fairly. This approach is particularly valuable for nuanced cases that require subjective judgment and contextual understanding.

Training and support are provided to all agents to make sure they have the necessary skills and knowledge to effectively moderate content in accordance with our guidelines. This includes initial onboarding training, as well as ongoing refreshers as we update moderation policies and procedures. Additionally, agents have access to a range of support resources, such as a team of experienced specialists who can provide guidance and assistance when needed, and an extensive partnership network of experts and authorities that we can reach out to for guidance.

On the other hand, automated content moderation tools significantly reduce the burden on human agents. This lets them concentrate on cases that require a deeper understanding of context, cultural sensitivities, and potential for harm. This approach ensures efficiency in content moderation, without losing accuracy.

We have put into effect a number of automated systems to ensure the safety and integrity of our platform. These include automated content removal or user suspension protocols that are triggered when specific low risk terms and conditions are violated, or in case of suspicious user behavior.

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Next to it, our keyword greylisting and blacklisting system allows us to identify content that is similar to content that was previously flagged as a Terms and Conditions violation or as illegal.

Greylisting employs the use of specific keywords and phrases to filter and control content. Keywords placed on the greylist undergo human review to ensure a high degree of accuracy and prevent unintended blocking of legitimate content before being moved to the blacklist, where automated removal applies without further manual checks.

The blacklisting of rules is determined by their quality score. Specifically, rules that have been greylisted and subsequently achieve a quality score exceeding 95% are moved to the blacklist. This process ensures that only high-quality rules, those that have proven to be effective and reliable, are used for filtering purposes. This high level of accuracy is crucial for content control, as it ensures that only the intended content is blocked, while minimizing the risk of false positives.

The process of creating, implementing and quality checking a greylisting rule typically takes approximately 72 hours.

Blacklisting may be applied as a temporary or long-term measure, depending on the context and ongoing evaluations.

The table below provides a complete overview of our content moderation efforts, both manual and automated, divided by category of violation.

Summary of information about own initiative measures and automated means (Marktplaats)	
Category of illegal content / incompatible with the terms and conditions	Manual and Automated
Animal Welfare	8.543
Consumer Information	14.650
Brand Comparison	8.563

Summary of information about own initiative measures and automated means (Marktplaats)	
Misleading Ad	6.087
Illegal Or Harmful Speech	7.528
Intellectual Property Infringements	80.876
Counterfeit Product	49.169
Copyright Infringements (See chapter 2 for breakdown)	31.707
Scams And Fraud	6.661
Already Sold	6.661
Unsafe And Prohibited Products	68.135
Suspicious Product	9.179
Unsafe Product	148
Illegal Product/Service	53.694
Forbidden Product/Service	5.114
Other Violation T&C	493.715
Erotic	18.659

Summary of information about own initiative measures and automated means (Marktplaats)	
Contains URL	152.232
Duplicate Ad	69.491
Wrong Category	247.324
Multiple Different Items	1.667
No Specific Product	767
Search Criteria	3.114
Warning Against Third Party	461
TOTAL	680.108

Summary of information about own initiative measures and automated means (Marktplaats and 2dehands/2ememain)		
Category of illegal content / incompatible with the terms and conditions	Automated initiatives	Manual initiatives
User suspension		
Intellectual Property Infringements	744	109

Users suspended due to copyright infringements	744	109
Scams And Fraud	658.927	263.540
Scam	11.693	70.753
Fraud	647.234	192.787
Other Violation T&C	530.895	107.178
General T&C Violation	0	9.960
Spam	530.572	96.650
Repeatedly submitted manifestly illegal content, unfounded notices or complaints (Repeat offenders)	323	568
Listing removal		
Animal Welfare	0	419
Scams And Fraud	93.063	0
No reason provided (fraudulent listing)	93.063	0
Unsafe And Prohibited Products	4.295	0
Illegal Product/Service	145	0
Forbidden Product/Service	4150	0
Other Violation T&C	227.780	158.260
Wrong Category	46.789	55.889
Duplicate Ad	40.319	19.078

Contains community warnings		372
Multiple Different Items		90
Contains URL	140.672	82.831
Other		
User close cascade (Listings closed automatically when suspending a user)	583.161	0
Greylisting rule setup	0	93.341

*** Due to technical constraints, the figures in the table above include listings removed and users suspended on both our Dutch platform (Marktplaats) and our Belgian platform (2dehands/2ememain).*

Collaboration with stakeholders

Marktplaats takes its responsibility to address harmful content and behavior seriously. In addition to complying with applicable laws and regulations, we actively cooperate with law enforcement and other relevant authorities to combat serious threats. This collaboration ensures that the platform remains a safe and trusted environment for all users.

In addition to adhering to legal obligations and court orders, we will proactively reach out to law enforcement agencies in case of:

1. **Discovery of Suspicious Activity:** If, during the course of our operations, we identify any activities that appear to be suspicious or potentially illegal, we will promptly notify the relevant law enforcement or authority. This may include, but is not limited to, activities that suggest fraud, child exploitation, or other serious crimes.
2. **Urgent Matters Requiring Immediate Attention:** In situations where there is an imminent threat to life, safety, or property, or where urgent action is required to prevent serious harm, we will not hesitate to request law enforcement agencies immediate assistance.

Given the sensitive nature of the topics, Marktplaats has taken the decision to maintain confidentiality regarding the specific reasons for proactively contacting authorities and law enforcement. This is to protect the integrity of ongoing investigations, and to ensure the safety and privacy of individuals involved.

However, in the interest of transparency and cooperation, Marktplaats does share this data with the relevant authorities.

Because of our long-lasting relationships with authorities and law enforcement, and through a broader network of industry partnerships and associations we engage regularly with, we stay informed about emerging risks and evolving best practices.

This proactive approach allows Marktplaats to continuously improve its safety measures and respond effectively to new challenges. By working together with industry peers, Marktplaats contributes to a safer and more responsible online marketplace.

We are continuously improving our reporting processes to align with the transparency obligations of the Digital Services Act (DSA), in alignment with the requirements laid out in the Implementing Regulation. Although we have accurately reported information regarding our platform moderation efforts, some inaccuracies or incompleteness may remain.